

COUNCIL AND COMMISSION DECISION (EU, Euratom) 2015/54

CELEX id	32015D0054
Document type	Decision
Policy domain	Politics
Year	2015
Legal actor type	Public agency
Applicable role	Applicant
Language	en

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of 17 November 2014

on the position to be taken on behalf of the European Union and the European Atomic Energy Community within the Association Council established by the Association Agreement between the European Union and the European Atomic Energy Community and their Member States, of the one part, and Georgia, of the other part, as regards the adoption of decisions of the Association Council on the Rules of Procedure of the Association Council and those of the Association Committee and of Sub-Committees, the establishment of two Sub-Committees, and the delegation of certain powers by the Association Council to the Association Committee in Trade configuration

THE COUNCIL OF THE EUROPEAN UNION,

THE EUROPEAN COMMISSION,

Having regard to the Treaty on the Functioning of the European Union, and in particular Article 217 in conjunction with Article 218(9) thereof,

Having regard to the Treaty establishing the European Atomic Energy Community, and in particular Article 101 thereof,

Having regard to the proposal from the European Commission,

Whereas:

(1)

Article 431 of the Association Agreement between the European Union and the European Atomic Energy Community and their Member States, of the one part, and Georgia, of the other part (1) ('the Agreement'), provides for provisional application of the Agreement in part.

(2)

Article 3 of Council Decision 2014/494/EU (2) specifies which parts of the Agreement are to be applied provisionally.

(3)

Pursuant to Article 405(2) of the Agreement, the Association Council is to establish its own rules of procedure.

(4)

Pursuant to Article 405(3) of the Agreement, the Association Council is to be chaired alternately by a representative of the Union and a representative of Georgia.

(5)

Pursuant to Article 407(1) of the Agreement, the Association Council is to be assisted in the performance of its duties and functions by an Association Committee whereas pursuant to Article 408(1) of the Agreement the Association Council is to determine in its rules of procedure the duties and functioning of the Association Committee.

(6)

Pursuant to Article 409(2) of the Agreement, the Association Council may decide to set up any special committee or body in specific areas necessary for the implementation of the Agreement to assist the Association Council in carrying out its duties. Pursuant to Article 409(3) of the Agreement, the Association Committee may also create sub-committees.

(7)

Pursuant to Article 404(1) of the Agreement, the Association Council is responsible for supervising and monitoring the application and implementation of the Agreement. In accordance with Article 408(2) of the Agreement the Association Council may delegate to the Association Committee any of its powers, including the power to take binding decisions. The Association Council should delegate the power to update or amend the Annexes to the Agreement which relate to Chapters 1, 3, 5, 6 (Annex XV-C to the Agreement) and 8 of Title IV (Trade and Trade-related Matters) of the Agreement, pursuant to Article 406(3) and Article 408(2) of the Agreement, to the Association Committee in Trade configuration, as set out in Article 408(4) of the Agreement, to the extent that there are no specific provisions in those Chapters relating to the updating or the amendment of those Annexes.

(8)

In order to ensure the effective implementation of the Agreement, the Rules of Procedure of the Association Council and those of the Association Committee and of Sub-Committees should be adopted as soon as possible and it should be possible to adopt them by written procedure.

(9)

The position of the Union within the Association Council should therefore be based on the attached draft Decisions,

HAVE ADOPTED THIS DECISION:

Article 1

1. The position to be taken on behalf of the European Union and the European Atomic Energy Community within the Association Council established by Article 404 of the Association Agreement between the European Union and the European Atomic Energy Community and their Member States, of the one part, and Georgia, of the other part, shall be based on the draft decisions of the Association Council attached to this Decision as regards:

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the adoption of the Rules of Procedure of the Association Council and those of the Association Committee and of Sub-Committees,

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the establishment of two Sub-Committees, and

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the delegation of certain powers by the Association Council to the Association Committee in Trade configuration, as set out in Article 408(4) of the Agreement.

2. Minor technical changes to the draft decisions of the Association Council may be agreed by the representatives of the Union in the Association Council without further decision of the Council of the European Union.

Article 2

The Association Council shall be chaired on the Union side by the High Representative of the Union for Foreign Affairs and Security Policy in his or her capacity as President of the Foreign Affairs Council of the European Union.

Article 3

This Decision shall enter into force on the date of its adoption.

Done at Brussels, 17 November 2014.